

File No.: EXP202211429

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The Citizen Security Unit ***LOCALITY.1 on 22/10/22 submitted a written statement to the Spanish Agency for Data Protection. In this statement, A.A.A. with NIF ***NIF.1 (hereinafter, the DENOUNCED party) is identified as the alleged material author. The facts being reported are briefly as follows:

“presence of a hidden camera in a downspout and another at the rear that allows the capture of public space without justified cause. No informative sign is observed anywhere in the construction (...)”—folio No. 1—.

Regarding these cameras, the SPANISH AGENCY FOR DATA PROTECTION previously issued PS.1, which concluded with the imposition of administrative sanctions for the infringement of Articles 5.1 c) and 13 of the GDPR.

Along with the notification, a copy of the Act (complaint) is provided, which certifies what was stated in the submitted document (Annex I photographs).

SECOND: On December 15, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the claimed party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

THIRD: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and no response has been received regarding this matter, nor has any corrective measure been adopted concerning the described situation.

FOURTH: On 16/01/23, the instructor of the procedure decided to carry out the following complementary evidence by requiring the acting force.

- Real verification of the cameras and expansion on the background of the case, specifically alleged criminal conduct in the property.

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FIFTH: On 17/02/23, a written statement was received from the complainant USC ***LOCALITY.1 (Expanded Report) in which it is stated:

- The cameras are operational as they have a red light pilot on (...) and are also connected via wiring. In the first complaint filed by this Unit, several of the screen monitors were visible in one of the rooms of the property where the daughter of the claimed party looked out (...)

The monitors displayed real-time images of the public road.

The orientation angle of the cameras is focused to record the public road around the perimeter of the house, affecting pedestrians and means of transport in its vicinity.

- The claimed party habitually resides in the cited property.

Through a query made in the data files of the Civil Guard databases, the claimed party has been the subject of complaints for this same reason on six occasions prior to the one filed by the Agents of this Unit (...) enumerating these actions below (...)

- The claimed party has police and judicial records (...) such practices have been carried out in the mentioned property and it has been the subject of entry/search for the seizure of substances.

- As of today, he continues to maintain the circuit of recording cameras installed in his home aimed at

recording the public road, which, in the opinion of the undersigned, serves as a means of surveillance for the practices of criminal activities for which he has been arrested.

- The claimed party is the father of B.B.B., for whom a report has been prepared for the same reasons in the property where he resides.

SIXTH: On 20/02/23, a was issued considering the evidence provided that the claimed party has a video surveillance camera system for obtaining images of the surroundings of his residence, without the proper signage and in a disproportionate manner, proposing an administrative sanction of €5000 (€3000 + €2000) for the proven infringement of Articles 5.1 c) and 13 of the GDPR.

SEVENTH: Upon consulting the database of this Agency, notification was made through the Official Postal and Telegraph Service, proceeding with a first notification attempt on 01/03/23 and a second attempt on 02/03/23, leaving a "Receipt Acknowledgment" for the appropriate legal effects.

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From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the Complaint dated 22/10/22, which states the following:

"presence of a hidden camera in a downspout and another at the rear that allows the capture of public space without justified cause. There is no informational sign observed anywhere in the construction (...)"—folio no. 1—.

Second. A.A.A. is established as the main responsible party, with DNI ***NIF.1.

Third. The presence of operational exterior cameras is established according to the judgment of the acting force, as stated in the (supplementary) Report dated 17/02/23.

Fourth. The visible absence of an informational sign indicating that it is a video-monitored area or indicating the responsible party for data processing is established.

Fifth. According to the Report from the acting force, it is established that the resident of the dwelling has a criminal record related to criminal conduct, being aware of the irregularity of the system, yet persists in the presence of devices to control the immediate environment of the dwelling.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, we proceed to examine the document referred to this Agency, which brings to attention the following conduct that may constitute an administrative infringement.

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"presence of a hidden camera in a downspout and another at the rear that allows the capture of public

space without justified cause. There is no informational sign observed anywhere in the construction (...)”—folio no. 1—.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the requisite informational sign, indicating the purposes and the responsible party for data processing, if applicable, of personal data.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as controlling areas of transit without justified cause.

Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

It is worth remembering that even in the case of a “simulated” camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its residents, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect areas of third parties who may feel intimidated by them, as this affects their free transit area.

III

In accordance with the evidence available in the present sanctioning procedure, it is considered that the party being claimed has a system of cameras without the proper signage affecting public transit areas without justified cause.

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The initial evidence provided allows us to infer the improper orientation of the cameras, which do not comply with current legality a priori, without having demonstrated that they meet the existing legal requirements.

The acting authority confirms that criminal activities are taking place in the dwelling, which is the reason for the presence of the cameras, as they allow for a preventive capacity in case of action within it.

Article 72, section 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements states that they “will expire after three years,” particularly including the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts constitute an infringement attributable to the defendant for violating the content of Article 5.1 c) of the GDPR, as previously mentioned.

IV

From the evidence provided, it can be inferred that the cameras are placed in the outdoor area (including one hidden in a gutter) without the presence of an informative sign indicating a video-monitored area.

Article 22, section 4 of the LOPDGDD (Organic Law 3/2018) states: “The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be considered fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the

controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device."

The previously described facts imply an infringement of the content of Article 13 of the GDPR, as the informative sign lacks an effective address to which one could direct inquiries, and it should have informed all neighbors of the purpose of the installation (e.g., protection of the premises, etc.).

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the controller shall provide the data subject with all the information indicated below at the time of obtaining the data: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

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Article 72, section 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements states that they "will expire after three years," particularly including the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of data subjects under Articles 12 to 22 (...).

In motivating the sanction, it is taken into account that the "facts" presented have already been subject to sanction by this agency, without evidence of the adoption of corrective measures, as well as ignoring the recommendations of the acting authority, which implies very serious negligent conduct, justifying a sanction of €5,000 (€3,000 + €2,000) for the continued infringement of Articles 5 and 13 of the GDPR, a sanction situated at the lower end of the scale for such conduct and in accordance with the criteria followed by this Agency.

In this case, consideration is given to the specific circumstances of the case, the sections 83.2 letters a), b), and c), developed previously, emphasizing the intentionality of controlling public space through the processing of third-party data, as well as the clear intent in the continued persistence of the described infringement to avoid actions by the Security Forces in the property where they reside.

VI

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments to implement them corresponds to the sanctioned party, as it is the controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate such conduct to open a further

administrative sanctioning procedure.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €5000 (€3000 + €2000).

SECOND: TO ORDER the respondent, in accordance with Article 58.2 of the GDPR, to proceed with the immediate removal of the camera(s) directed towards public space within 15 working days from the notification of this administrative act, providing a photograph with date and time, as well as to certify the immediate regularization of the system.

THIRD: TO NOTIFY this resolution to A.A.A.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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